

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Team # 2	CCRB Case #: 201404890	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/23/2014 10:30 PM	Location of Incident: East 94th Street and Rutland Road	Precinct: 67	18 Mo. SOL 10/23/2015	EO SOL 10/23/2015	
Date/Time CV Reported Sat, 05/17/2014 10:09 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 05/17/2014 10:09 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Joannie Colonsuthiwong	27657	954657	PBBS
2. POF Trisha Wallace	29675	953758	PBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jonathan Colon	28889	952608	067 PCT
2. SGT Brian Bartley	02053	927905	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Joannie Colonsuthiwong	Discourtesy: PO Joannie Colonsuthiwong spoke discourteously to § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 23, 2014, § 87(2)(b) filed a complaint with the CCRB online (encl. [3A-G]). On April 23, 2014, at 10:30 p.m., at the intersection of E. 94th Street and Rutland Road in Brooklyn, PO Joannie Colonsuthiwong of Patrol Borough Brooklyn South issued a parking violation summons to § 87(2)(b) (encl. [4G]) and a § 87(2)(b) summons to § 87(2)(b)'s fiancé, § 87(2)(b) (encl. [4E-F]). PO Colonsuthiwong allegedly spoke rudely to § 87(2)(b) during this interaction (**Allegation A**).

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim regarding this incident (encl. [7A]), § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

Neither § 87(2)(b) nor § 87(2)(b) has filed prior complaints (encl. [2C-D]). PO Colonsuthiwong and PO Wallace have been members of the service for one year and this is the first CCRB complaint filed against them (encl. [2A-B]).

Findings and Recommendations

Allegations Not Pled

- § 87(2)(g)

Allegation A – Discourtesy: PO Joannie Colonsuthiwong spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged in her interview (encl. [3L-R]) that when § 87(2)(b) disputed that he was being disorderly, PO Colonsuthiwong told him, “Watch your fucking tone.”

§ 87(2)(b) failed to provide an in-person statement. There were no other identified civilian witnesses to this encounter. Although there was some indication that § 87(2)(b) was in possession of video footage of the incident, neither § 87(2)(b) nor § 87(2)(b) ever provided it.

PO Colonsuthiwong in her interview (encl. [4H-J]) did not remember telling § 87(2)(b) to “watch [his] fucking tone.” PO Colonsuthiwong did not remember using profanity, and generally does not curse. PO Wallace in her interview (encl. [4K-P]) denied hearing PO Colonsuthiwong tell § 87(2)(b) to “watch his fucking tone,” or hearing any officer use any profanity whatsoever.

Officers are generally required to be polite in their dealings with the public. Patrol Guide Section 203-09 (encl. [1A]) In certain situations, officers are permitted to use profanity in order to make a point, gain compliance, or in the midst of an extremely dangerous situation. PD v. Court (DCT no. 79627/04) (encl. [1B-K])

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date